

## 21STCV45639 21STCV45639

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Case Number: 21STCV45639 Hearing Date: August 6, 2026 Dept: G

Defendant Vaidehi, Inc.'s Motion for Summary

Judgment, or in the Alternative, Summary Adjudication

Respondent: Plaintiffs Karla Balderrama,

Karla Villegas, Emily Balderrama, and Martin Mendez

TENTATIVE

RULING

Defendant

Vaidehi, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary

Adjudication is GRANTED IN PART and DENIED IN PART.

BACKGROUND

This

is a personal injury action. On November

4, 2019, plaintiff Karla Balderrama (Balderrama) and her minor children

plaintiffs Karla Villegas, Emily Balderrama, and Martin Mendez (collectively,

the Balderrama Children) allegedly checked in to a hotel operated by defendant

Vaidehi, Inc. (Vaidehi). On December 15

and 16, 2019, Balderrama and the Balderrama Children (collectively, the

Balderrama Family) allegedly discovered bug bites on their bodies. On December 27, 2019, Balderrama allegedly

informed Vaidehi's hotel manager about the bug bites. The Balderrama Family allegedly moved to two

different rooms but received bug bites and discovered bed bugs in the other

rooms before moving back in to their original room. On March 10 and 19, 2020, the Balderrama

Family allegedly sought medical treatment for their bug bites. The hospital allegedly diagnosed the

Balderrama Family with bed bug bites and prescribed medication. On September 2, 2020, the Balderrama Family

moved out of the hotel.

On

December 15, 2021, the Balderrama Family filed the Complaint, alleging causes of action for (1) battery, (2) negligence, (3) intentional infliction of emotional distress, (4) fraudulent concealment, (5) private nuisance, (6) public nuisance, and (7) breach of contract.

On

April 24, 2026, Vaidehi filed this motion for summary judgment, or in the alternative, summary adjudication. On June 29, 2026, the Balderrama Family filed the opposition, and on July 9, 2026, Vaidehi filed the reply.

On

July 20, 2026, the court continued the hearing for supplemental briefing. On July 22, 2026, Vaidehi filed the supplemental moving brief. On July 24, 2026, the Balderrama Family filed the supplemental opposition, and on July 27, 2026, Vaidehi filed the supplemental reply.

This

case is set for a final status conference and a continued hearing on the motion on August 6, 2026.

EVIDENTIARY

OBJECTIONS

The

Balderrama Family objects to portions of the declaration of Vaidehi's counsel and an exhibit attached thereto. The following objections are OVERRULED: 1–3.

ANALYSIS

Vaidehi

seeks judgment on each cause of action.

For the following reasons, the motion is GRANTED IN PART and DENIED IN PART.

Legal

## Standard

### A

motion for summary judgment or adjudication provides “courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) In a motion for summary judgment or summary adjudication, “the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) It must be granted “if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, quoting Code Civ. Proc., § 437c, subd. (c).) A defendant moving for summary judgment or summary adjudication “has met [their] burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

### To

establish a triable issue of material fact, the opposing party must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) “A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

## Discussion

### First

Cause of Action: Battery

Vaidehi

argues that it is entitled to judgment on the first cause of action for battery. The court disagrees.

“The

essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” (So v. Shin (2013) 212 Cal.App.4th 652, 669.)

Vaidehi

contends that the Balderrama Family “cannot establish the intent element for civil battery.” (Mot., p. 10.) Vaidehi continues, “[the Balderrama Family has] failed to produce any evidence showing the existence of bed bugs” and “[has] failed to produce any evidence that [Vaidehi] knew or should have known of said bed bugs, let alone any evidence that [Vaidehi] intentionally performed or failed to perform any act that resulted in harmful or offensive contact.” (Mot., p. 11.)

However,

on summary judgment and summary adjudication, the moving party bears the initial burden to demonstrate that it is entitled to judgment. (See Scaff, supra, 128 Cal.App.4th at 1519.) Vaidehi does not produce any evidence that establishes its lack of intent. (See generally UMF.) Furthermore, regarding the other elements of battery, Vaidehi’s evidence demonstrates that the Balderrama Family did not consent to receiving bug bites, that they sought medical treatment for their bug bites. (See UMF Nos. 6–11.) All “inferences reasonably deducible” from this evidence demonstrate there is a triable issue of fact whether Vaidehi caused harmful contact. (Adler, supra, 7 Cal.App.4th at 1119.) Thus, Vaidehi does not demonstrate that it is not liable for battery.

Since

Vaidehi fails to establish that it did not intend to cause harmful contact, the burden does not shift to the Balderrama Family to show a triable issue of material fact that Vaidehi is liable for battery. (See Sangster, supra, 68 Cal.App.4th at 166.)

Therefore,

summary adjudication is DENIED as to the first cause of action.

Second

Cause of Action: Negligence

Vaidehi

argues that it is entitled to judgment on the second cause of action for negligence. The court agrees.

To

state a claim for negligence, a plaintiff must allege (1) the existence of a legal duty of care, (2) breach of that duty, and (3) proximate cause resulting in an injury. (McIntyre v.

Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.) “The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (Castellon

v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) “Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises.” (Kesner v. Super. Ct.

(2016) 1 Cal.5th 1132, 1158, cleaned up.)

“Before liability may be thrust on a landlord for a third party’s injury due to a dangerous condition on the land, the plaintiff must show that the landlord had actual knowledge of the dangerous condition in question, plus the right and ability to cure the condition.”

(Garcia v. Holt (2015) 242 Cal.App.4th 600, 604.)

Vaidehi

first contends that it did not owe the Balderrama Family any duty, as “a landowner generally does not owe any legal duty of care to persons who are not located on their property.” (Mot., p.

12, internal citation omitted.) Vaidehi

argues that the Balderrama Family does not produce independent evidence that they were harmed on Vaidehi’s property.

(See Mot., p. 12.) As discussed

above, however, on summary judgment and summary adjudication, the moving party

bears the initial burden of demonstrating that it is entitled to judgment. (See Scalf, supra, 128 Cal.App.4th at 1519.) Vaidehi does not

produce any evidence that establishes that the Balderrama Family received their bug bites elsewhere. (See generally

UMF.) Nevertheless, even if Vaidehi owed

the Balderrama Family a duty of care, Vaidehi’s State Official Inspection

Reports “[do not] reflect a finding of bed bugs.” (UMF No. 23.)

Thus, Vaidehi demonstrates that it did not breach its duty to the Balderrama Family because it did not have actual knowledge of the dangerous condition.

Since

Vaidehi establishes that it did not have knowledge of the dangerous condition, the burden shifts to the Balderrama Family to show a triable issue of material fact that Vaidehi knew about the bed bug infestation. (See Sangster, supra, 68 Cal.App.4th at 166.)

The

court finds the Balderrama Family fails to meet their burden to establish a triable issue of material fact that Vaidehi knew about the dangerous condition. Here, the Balderrama Family does not dispute Vaidehi's evidence of the State Official Inspection Reports with substantial responsive evidence. (See Sangster, supra, 68 Cal.App.4th at 166.) Instead, the Balderrama Family objects to the evidence, which the court overruled. (See UMF No. 23; see also Evid. Obj. No. 3.)

In

their supplemental briefing, the parties address the sufficiency of the Balderrama Family's evidence. (See, e.g., Supp. Mov. P&A, pp. 3–8.) On summary adjudication, the party's own uncorroborated testimonial evidence is sufficient to create a triable issue of material fact. (See Preach v. Monter Rainbow (1993) 12 Cal.App.4th 1441, 1450, explaining that the testimonial evidence of a party opposing summary judgment is liberally construed and all inferences are drawn in their favor.) However, the Balderrama Family does not cite any evidence, testimonial or documentary, in either its opposition, supplemental opposition, or responsive separate statement, that demonstrates that Vaidehi had actual or constructive knowledge of bed bugs on their property or failed to inspect the property for bed bugs.

Thus,

the court finds there is no triable issue of material fact that Vaidehi knew about the bed bug infestation, and Vaidehi is entitled to judgment on the cause of action for negligence.

Therefore,

summary adjudication is GRANTED as to the second cause of action.

Third

Cause of Action: Intentional Infliction of Emotional Distress

Vaidehi

argues that it is entitled to judgment on the third cause of action for intentional infliction of emotional distress.

The court disagrees.

“The

elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, cleaned up.)

Outrageous conduct means conduct that is “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Ibid.) A pleading that alleges severe or extreme emotional distress must “set forth any facts which indicate the nature or extent of any mental suffering.” (Bogard v. Employers Casualty Co. (1985) 164 Cal.App.3d 602, 617–618.)

Vaidehi

cites evidence that “that no healthcare professional treated [the Balderrama Family] for psychological issues/mental issues.” (UMF No. 19.)

While evidence of medical treatment for mental suffering may be sufficient to demonstrate emotional distress, the lack of evidence of medical treatment for mental suffering does not establish the lack of emotional distress. (See Keys v. Alta Bates

Summit Medical Center (2015) 235 Cal.App.4th 484, 491, finding sufficient evidence of emotional distress solely based on a party's testimony about their feelings.) Furthermore, Vaidehi's

evidence does not address the other elements of intentional infliction of emotional distress. (See generally UMF.) Thus, the court finds Vaidehi does not demonstrate that it is not liable for intentional infliction of emotional distress.

Since

Vaidehi fails to establish that it did not engage in extreme and outrageous

conduct or that the Balderrama Family did not suffer emotional distress, the burden does not shift to the Balderrama Family to show a triable issue of material fact that Vaidehi is liable for intentional infliction of emotional distress. (See Sangster, supra, 68 Cal.App.4th at 166.)

Therefore,  
summary adjudication is DENIED as to the third cause of action.

Fourth  
Cause of Action: Fraudulent Concealment

Vaidehi  
argues that it is entitled to judgment on the fourth cause of action for fraudulent concealment. The court  
agrees.

The  
elements of fraud “are (a) a misrepresentation (false representation, concealment, or nondisclosure); (b) scienter or knowledge of its falsity; (c) intent to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

Vaidehi  
meets its initial burden to demonstrate that it did not knowingly conceal a material fact from the Balderrama Family.  
Here, Vaidehi presents evidence of the Balderrama Family’s discovery responses, which do not suggest that Vaidehi produced any record or document relating to the Balderrama Family’s stay at the hotel.  
(See UMF No. 17.) Vaidehi’s  
State Official Inspection Reports “[do not] reflect a finding of bed bugs.” (UMF No. 23.) If there was no representation and no knowledge of the infestation, then there is no misrepresentation, no scienter, no intent to induce reliance, and no justifiable reliance. Thus, Vaidehi demonstrates that it did not fraudulently conceal the bed bug infestation.

Since  
Vaidehi establishes that it did not conceal its knowledge of the bed bug infestation, the burden shifts to the Balderrama Family to show a triable issue



of material fact that Vaidehi knew about the infestation, concealed that information from the Balderrama Family, and that they relied on the nondisclosure to their own detriment. (See Sangster, *supra*, 68 Cal.App.4th at 166.)

The

Balderrama Family fails to meet their burden to establish a triable issue of material fact that Vaidehi fraudulently concealed the bed bug infestation. Here, the Balderrama Family does not dispute Vaidehi's evidence of the State Official Inspection Reports with substantial responsive evidence. (See Sangster, *supra*, 68 Cal.App.4th at 166.)

Instead, the Balderrama Family objects to the evidence, but the court overrules the objection. (See UMF No. 23; see also Evid. Obj. No. 3.)

Thus,

the court finds there is no triable issue of material fact that Vaidehi knowingly concealed the bed bug infestation, and Vaidehi is entitled to judgment on the cause of action for fraudulent concealment.

Therefore,

summary adjudication is GRANTED as to the fourth cause of action.

Fifth

Cause of Action: Private Nuisance and Sixth Cause of Action: Public Nuisance

Vaidehi

argues that it is entitled to judgment on the fifth cause of action for private nuisance and the sixth cause of action for public nuisance. The court disagrees.

To

establish an action for private nuisance, (1) "the plaintiff must prove an interference with his use and enjoyment of his property"; (2) "the invasion of the plaintiff's interest in the use and enjoyment of the land must be substantial, that is, that it causes the plaintiff to suffer substantial actual damage"; (3) "the interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as to constitute unreasonable interference with the use and enjoyment of the land." (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 262–263,

cleaned up.) Public nuisances are

“substantial and unreasonable . . . offenses against, or interferences with, the exercise of rights common to the public.”

(County of Santa Clara v. Atlantic Richfield Co. (2006) 137

Cal.App.4th 292, 305.)

Vaidehi

contends that the Balderrama Family “produced no admissible evidence demonstrating the existence of a condition (an actual bedbug infestation), that interfered with their use and enjoyment of the property.” (Mot., p. 18.) But as discussed above, on summary judgment and summary adjudication, the moving party bears the initial burden to demonstrate that it is entitled to judgment.

(See Scaf, supra, 128 Cal.App.4th at 1519.) Instead of providing prima facie evidence that the Balderrama Family cannot succeed on its private nuisance, Vaidehi’s evidence establishes that the Balderrama Family checked into the hotel, received bug bites, complained to Vaidehi about the bug bites, and sought medical treatment for their bug bites. (See UMF Nos. 5–11, 21–22.) Thus, Vaidehi does not demonstrate that it is not liable for public nuisance or private nuisance.

Since

Vaidehi fails to establish that it did not substantially and unreasonably interfere with the Balderrama Family’s use of the hotel or a public right, the burden does not shift to the Balderrama Family to show a triable issue of material fact that Vaidehi is liable for public nuisance. (See Sangster, supra, 68 Cal.App.4th at 166.)

Therefore,

summary adjudication is DENIED as to the fifth and sixth causes of action.

Seventh

Cause of Action: Breach of Contract

Vaidehi

argues that it is entitled to judgment on the seventh cause of action for breach of contract. The court agrees.

To

state a cause of action for breach of contract, the plaintiff must be able to establish "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Vaidehi

meets its initial burden to demonstrate that it did not breach any contract with the Balderrama Family because the parties did not enter into a contractual relationship. Here, Vaidehi presents evidence of the Balderrama Family's discovery responses, which do not suggest that Vaidehi produced any record or document relating to the Balderrama Family's stay at the hotel. (See UMF No. 17.) Furthermore, the discovery responses suggest that the Balderrama Family did not pay Vaidehi or otherwise provide consideration in exchange for lodging at the hotel. (See UMF No. 18.) Thus, Vaidehi demonstrates that the parties did not enter into a contractual relationship.

Since

Vaidehi establishes that the parties did not have a contractual relationship, the burden shifts to the Balderrama Family to show a triable issue of material fact that a contract existed and that Vaidehi breached the contract. (See Sangster, supra, 68 Cal.App.4th at 166.)

The

Balderrama Family fails to meet their burden to establish a triable issue of material fact that a contract exists. Here, the Balderrama Family does not dispute Vaidehi's evidence of their own discovery responses with substantial responsive evidence. (See Sangster, supra, 68 Cal.App.4th at 166.) Instead, the Balderrama Family argues against the separate statement based on the supposed vagueness of the citations, but the court finds that the citations to evidence are sufficient to identify the basis for undisputed material facts described in the separate statement. (See UMF Nos. 17–18.) Thus, there is no triable issue of material fact that a contract exists, and Vaidehi is entitled to judgment on the cause of action for breach of contract.

Therefore,

summary adjudication is GRANTED as to the seventh cause of action.

Accordingly,

summary judgment is DENIED.

#### CONCLUSION

Based

on the above analysis, Defendant Vaiddehi's motion for summary judgment is DENIED.

Defendant

Vaidehi's the motion for summary adjudication is GRANTED IN PART as to the second, fourth, and seventh causes of action and DENIED IN PART as to the first, third, fifth, and sixth causes of action.